

UPSC INDIAN POLITY

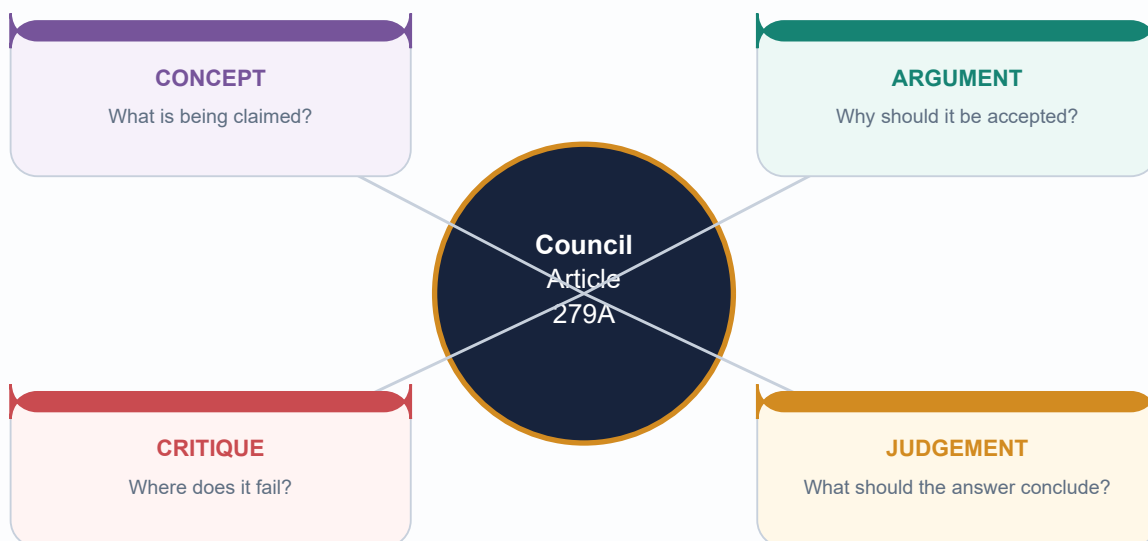
GST Council (Article 279A) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: GST-Council.md + 30_GST-Council.md

Learning cards: 16



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic (foundation) · **GS-II / GS-III***Foundation learning layer: concepts → constitutional detail → UPSC application.*

STATIC THEORY

• greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive* → *advanced/30_GST-Council.md*.

MEMORY HOOK

greater than □ = from book · □ = current link · = mnemonic. *Deep dive* → *advanced/30_GST-Council.md*.

MUST-KNOW FACTS

1. greater than = from book · □ = current link · □ = mnemonic. *Deep dive* → *advanced/30_GST-Council.md*.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED /
COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Fact
Article	Art 279-A
Created by	101st Amendment Act, 2016 (order 15 Sep 2016)
Nature	Constitutional federal recommendatory forum
Chair	Union Finance Minister

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED /
COMPLETE → Snapshot

HIGH

Foundation • Core idea

GS-II Indian
Polity

INTRO & ORIGIN

The GST Council is a **joint Centre-state forum** that recommends GST rates, exemptions, model laws and related design through a special weighted vote. Legislatures/executives give legal effect to those recommendations; they are **not binding** (*Mohit Minerals*, 2022).

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea



Dimension 1

The GST Council is a joint Centre-state forum that recommends GST rates, exemptions, model laws and related design through a special weighted vote. Le

Dimension 2

greater than □ Voting maths: decisions need 3/4 weighted votes; Centre = 1/3, all states = 2/3; quorum = 1/2.

Dimension 3

greater than □ The Centre alone can block (3/4 needed) but cannot pass without states.

STATIC THEORY

- greater than □ **Voting maths**: decisions need **3/4 weighted votes**; **Centre = 1/3, all states = 2/3; quorum = 1/2**.
- greater than □ The Centre alone can **block** (3/4 needed) but **cannot pass** without states.

MEMORY HOOK

greater than **Voting maths**: decisions need 3/4 weighted votes; Centre = 1/3, all states = 2/3; quorum = 1/2. |
greater than The Centre alone can **block** (3/4 needed) but cannot pass without states.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — **ADVANCED / COMPLETE** → Core idea

HIGH

Foundation • Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

- Chair = **Union FM**; members = Union MoS Finance + one minister per state; **Vice-Chair chosen by states**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1 ☐ Chair = Union FM; members = Union MoS Finance + one minister per state; Vice-Chair chosen by states.	Dimension 2 ☐ Revenue Secretary = ex-officio Secretary; CBIC chair = permanent non-voting invitee.
Dimension 3 ☐ Petrol, diesel, ATF, natural gas, crude are outside GST until the Council decides a date.	Dimension 4 ☐ Recommended 5-year compensation to states (ended June 2022).

STATIC THEORY

- ☐ **Revenue Secretary** = ex-officio Secretary; **CBIC chair** = permanent non-voting invitee.
- ☐ Petrol, diesel, ATF, natural gas, crude are **outside GST** until the Council decides a date.
- ☐ Recommended **5-year compensation** to states (ended June 2022).

MUST-KNOW FACTS

1. Chair = **Union FM**; members = Union MoS Finance + one minister per state; **Vice-Chair chosen by states**.
2. **Revenue Secretary** = ex-officio Secretary; **CBIC chair** = permanent non-voting invitee.
3. Petrol, diesel, ATF, natural gas, crude are **outside GST** until the Council decides a date.
4. Recommended **5-year compensation** to states (ended June 2022).

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — **ADVANCED / COMPLETE** → Must-Know Facts

HIGH

Foundation • ☐ Current linkGS-II Indian
Polity

NEWS TRIGGER

- ☐ **GST 2.0 (effective 22 Sep 2025)** — slabs rationalised to **5% & 18%** (+ 40% sin/luxury rate); health & life insurance exempt. **Mohit Minerals (2022)**: Council recommendations are **persuasive, not binding**.

INTRO & ORIGIN

Exam-ready treatment of ☐ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — **ADVANCED / COMPLETE** → ☐ Current link

HIGH

Advanced • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II / GS-III

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) ·
GS Paper: GS-II / GS-III

Dimension 2

greater than **Grounded in:** Indian Polity by M. Laxmikant, Ch. 46 (direct check of the local Sixth Revised Edition PDF) +
official GST Council update.

Dimension 3

greater than □ = from source book · □□ = inference / case
law · □ = current affairs.

Dimension 4

greater than **Companion:** basic/GST-Council.md.

STATIC THEORY

• greater than **Grounded in:** Indian Polity by M. Laxmikant, Ch. 46 (direct check of the local Sixth Revised Edition PDF) +
official GST Council update.

• greater than □ = from source book · □□ = inference / case law · □ = current affairs.

• greater than **Companion:** basic/GST-Council.md.

MUST-KNOW FACTS

1. greater than = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED /
COMPLETE → Core Foundation

HIGH

Advanced • PART A — ESTABLISHMENT □

GS-II Indian
Polity

INTRO & ORIGIN

□ The **101st Amendment Act, 2016** introduced **GST** and inserted **Article 279-A**, empowering the **President** to constitute the **GST Council** by order (issued **15 Sept 2016**).

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART A — ESTABLISHMENT □: RECALL MAP

PART A — ESTABLISHMENT □

Dimension 1 □ The 101st Amendment Act, 2016 introduced GST and inserted Article 279-A, empowering the President to constitute the GST Council by order (issued 15	Dimension 2 □ A constitutional federal recommendatory forum central to GST design — a model
Dimension 3 of cooperative federalism. Its recommendations require legal implementation and are not independently binding commands.	Dimension 4 □ Secretariat at New Delhi; the Union Revenue Secretary is the ex-officio Secretary; the CBIC/CBEC

STATIC THEORY

- □ A **constitutional federal recommendatory forum** central to GST design — a model
- of cooperative federalism. Its recommendations require legal implementation and are not independently binding commands.
- □ Secretariat at **New Delhi**; the **Union Revenue Secretary** is the **ex-officio Secretary**; the ****CBIC/CBEC**
- chairperson **is a permanent invitee (non-voting)****.

MUST-KNOW FACTS

1. The **101st Amendment Act, 2016** introduced **GST** and inserted **Article 279-A**, empowering the **President** to constitute the **GST Council** by order (issued **15 Sept 2016**).
2. A **constitutional federal recommendatory forum** central to GST design — a model
3. Secretariat at **New Delhi**; the **Union Revenue Secretary** is the **ex-officio Secretary**; the ****CBIC/CBEC**

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — **ADVANCED / COMPLETE** → **PART A — ESTABLISHMENT** □

HIGH

Advanced · PART B — COMPOSITION □

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Member	Role
□ Union Finance Minister	Chairperson
□ Union MoS (Revenue/Finance)	Member
□ State Minister (Finance/Taxation or nominated) from each state	Members

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — **ADVANCED / COMPLETE** → **PART B — COMPOSITION** □

HIGH

Advanced · PART B — COMPOSITION □

GS-II Indian
Polity

INTRO & ORIGIN

- The **state members choose one among themselves as Vice-Chairperson** (and decide his term).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. The **state members choose one among themselves as Vice-Chairperson** (and decide his term).

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → PART B — COMPOSITION □

HIGH

Advanced · PART C — WORKING (voting maths) □ □

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Rule	Value
□ Quorum	½ of total members
□ Decision majority	≥ 3/4 of weighted votes of members present & voting
□ Centre's weight	1/3 of votes cast
□ All states combined	2/3 of votes cast

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → PART C — WORKING (voting maths) □ □

HIGH

Advanced · PART C — WORKING (voting maths) □ □

GS-II Indian
Polity

INTRO & ORIGIN

- **Design insight:** the Centre alone (1/3) can **block** any resolution (needs 3/4 to pass), but **cannot pass** anything without states — a deliberate federal balance. Acts are **not invalidated** by vacancies, defects in appointment, or non-material procedural irregularities.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → PART C — WORKING (voting maths) □ □

HIGH

Advanced • PART D — FUNCTIONS □

GS-II Indian
Polity

INTRO & ORIGIN

Recommends to Centre & states on: taxes/cesses/surcharges **subsumed** in GST; goods/services **taxed or exempt**; **model GST laws, place-of-supply** principles; **threshold turnover** for exemption; **rates (incl. floor rates with bands)**; special disaster rates; special provisions for **NE & hill/special-category states**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART D — FUNCTIONS □: RECALL MAP

PART D — FUNCTIONS □

Dimension 1 Recommends to Centre & states on: taxes/cesses/surcharges subsumed in GST; goods/services taxed or exempt; model GST laws, place-of-supply principles;	Dimension 2 □ Recommends the date to bring petroleum crude, diesel, petrol, natural gas, ATF under GST (currently
Dimension 3 outside GST).	Dimension 4 □ Must set up a dispute-resolution mechanism (Centre-state / state-state).

STATIC THEORY

- Recommends **the date** to bring **petroleum crude, diesel, petrol, natural gas, ATF** under GST (currently outside GST).
- Must set up a **dispute-resolution mechanism** (Centre-state / state-state).
- Recommended **compensation to states** for revenue loss for **5 years** (GST Compensation Act, 2017).

MUST-KNOW FACTS

- Recommends **the date** to bring **petroleum crude, diesel, petrol, natural gas, ATF** under GST (currently outside GST).
- Must set up a **dispute-resolution mechanism** (Centre-state / state-state).
- Recommended **compensation to states** for revenue loss for **5 years** (GST Compensation Act, 2017).

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → PART D — FUNCTIONS □

HIGH

Advanced • PART E — □ CURRENT DEVELOPMENTS

GS-II Indian
Polity

NEWS TRIGGER

□ **GST 2.0 (56th GST Council, effective 22 Sept 2025)**: the old four-slab structure (5/12/18/28%) was **rationalised into two main slabs — 5% (merit) & 18% (standard)** — plus a **40% "sin/luxury" rate** (tobacco, pan masala, aerated drinks, luxury vehicles). Individual health & life insurance **fully exempt**. □ □ **Mohit Minerals case (SC, 2022)**: GST Council recommendations are **only persuasive, NOT binding** on the

INTRO & ORIGIN

Centre or states (both have simultaneous power to tax) — a landmark on **fiscal federalism** and states' autonomy.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART E — □ CURRENT DEVELOPMENTS □: RECALL MAP

PART E — □ CURRENT DEVELOPMENTS □

Dimension 1 Centre or states (both have simultaneous power to tax) — a landmark on fiscal federalism and states' autonomy.	Dimension 2 □ □ End of GST compensation (June 2022) & states' demand for extension; compensation cess now servicing
Dimension 3 loans / repurposed.	

STATIC THEORY

- □ □ **End of GST compensation (June 2022)** & states' demand for extension; **compensation cess** now servicing
- loans / repurposed.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — **ADVANCED / COMPLETE** → **PART E — □ CURRENT DEVELOPMENTS** □

HIGH

Advanced • UPSC Traps

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: GST Council decisions need a simple majority

CORRECT: 3/4 of weighted votes.

WRONG: Centre's vote weight is 1/2

CORRECT: 1/3 (all states together = 2/3).

WRONG: GST Council recommendations are binding

CORRECT: only **recommendatory/persuasive** (Mohit Minerals, 2022).

WRONG: Petrol & diesel are already under GST

CORRECT: **outside GST** until the Council fixes a date.

WRONG: GST Council is a statutory body

CORRECT: it is a **constitutional body** (Art 279-A).

WRONG: The PM chairs the GST Council

CORRECT: the **Union Finance Minister**.

WRONG: Quorum is 1/3

CORRECT: 1/2 of members (the 1/3 refers to the Centre's *vote weight*).

MAINS ANGLE**STUDY LINK**

GST Council (Article 279A) — **ADVANCED / COMPLETE** → UPSC Traps

HIGH**Advanced • CA hooks****GS-II** Indian
Polity**NEWS TRIGGER**

□ **GST 2.0** two-slab rationalisation — consumption boost vs revenue implication (~₹48,000 cr). □ GST on **petroleum products** — long-pending inclusion debate. □ **Cooperative vs "coercive" federalism** — states' voice in the Council post-compensation.

INTRO & ORIGIN

Exam-ready treatment of □ CA hooks.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

GST Council (Article 279A) — **ADVANCED / COMPLETE** → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The GST Council is a laboratory of cooperative federalism." Examine, using the voting design and Mohit Minerals. Should petroleum products be brought under GST? Analyse the fiscal-federal trade-offs. GST 2.0 rate rationalisation: simplification vs revenue autonomy of states.

STUDY LINK

GST Council (Article 279A) — **ADVANCED / COMPLETE** → Mains angles

End of Register Notes — UPSC Agent / Copilot CLI